

25STCV13944 25STCV13944

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-09-28
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Case Number: 25STCV13944 Hearing Date: September 28, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

HEIDI BURNS,

Plaintiff,

vs.

ADDEPAR, INC., et al.,

Defendants.

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CASE NO.: 25STCV13944

[TENTATIVE] ORDER VACATING DECEMBER 9,
2025 ORDER COMPELLING ARBITRATION; DENYING MOTION TO COMPEL ARBITRATION

Dept. 506

8:30 a.m.

September 28, 2026

On December 9, 2026, the
Court granted Defendants' motion to compel arbitration of Plaintiff's claims.

On

July 29, 2026, the Court of Appeal, Second District, Division One issued an
Alternative Writ of Mandate, instructing this Court to vacate the December 9,
2025 order "and, after permitting briefing, reconsider the matter in light of
this Court's ruling in Decloedt v. RadNet Management, Inc. (June 26,
2026, No. B343963) [121 Cal.App.5th 732]."

Accordingly, the Court scheduled a hearing for August 31, 2026. The parties filed briefs before the hearing.

At

the August 31, 2026 hearing, the Court "direct[ed] Counsel to each file further
briefing no later than September 20, 2026."

The Court received Plaintiff's supplemental brief via email on September
21, 2026, and Defendants' supplemental brief via email on September 22, 2026. Neither supplemental brief was actually
filed. The parties are ORDERED to immediately
electronically file their supplemental briefs.

DISCUSSION

Under

the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (“EFAA”), no pre-dispute arbitration agreement is valid or enforceable with respect to a case that relates to a sexual assault dispute or a sexual harassment dispute. (9 U.S.C.A. §§ 401, 402(a).) “[T]he statute applies to the entire case, not merely to the sexual assault or sexual harassment claims alleged as a part of the case. It is significant, moreover, that the statute does not require that the pendant claims arise out of the sexual assault or sexual harassment dispute; it is enough that the case relates to the sexual assault or sexual harassment claims.” (Doe v. Second Street Corp. (2024) 105 Cal.App.5th 552, 577.)

The

Court of Appeal “read[s] [Government Code] section 12940, subdivision (j)(4)(C) as a provision by which the Legislature removed any doubt that harassment based on gender, pregnancy, childbirth, and medical conditions relating to pregnancy and childbirth constitute harassment because of sex, even though that form of harassment may not be motivated by sexual desire.” (Decloedt, supra, (2026) 121 Cal.App.5th at p. 743.)

Defendants

argue that “the Complaint fails to allege sufficient facts to state a viable claim for pregnancy-based harassment under the FEHA.” (Def. Suppl. Brief at p. 4.)

In

April 2023 and May 2023, Defendants’ Head of Brand Marketing asked Plaintiff and another employee if they had planned on getting pregnant at the same time; asked other employees “what’s in the water” and “who is going to go out next on maternity leave?”; told Plaintiff “you’re going to be a mom of 2 now, you’re going to want to slow down”; and later repeated to Plaintiff until her pregnancy leave of absence “you probably won’t want to come back to work after having another baby.” (Complaint ¶ 20; see Complaint ¶ 18.) Plaintiff understood the comments to mean that “Defendants were questioning Plaintiff’s ability, because she is a woman, to juggle work and family responsibilities”; “Defendants were assuming Plaintiff, because she is a woman, will perform her job less well due to her presumed family obligations, will neglect her job responsibilities

in favor of her presumed childcare responsibilities, and will necessarily be a poor worker because of family responsibilities”; “Defendants were not giving Plaintiff the opportunity to prove her mettle in the work arena without the burden of sexist stereotypes regarding whether she can fulfill her responsibilities”; and “Defendants were telling Plaintiff that she could not be a good mother and show the same level of commitment at work because she would soon have multiple children, including a little one, at home.” (Complaint ¶ 20.) After Plaintiff reported the harassing statements, Defendants began retaliating against Plaintiff. (Complaint ¶ 26.) Then, after Plaintiff’s pregnancy leave of absence, “Defendants failed to reinstate Plaintiff to the same position she held before her pregnancy leave of absence, and failed to reinstate Plaintiff to a position that was comparable to the position she held before her pregnancy leave of absence.” (Complaint ¶ 29.)

Defendants

argue that Plaintiff “does not allege the type of repeated hostile conduct, threats, intimidation, physical aggression, or sustained abusive treatment present in Decloedt.” (Def.

Suppl. Brief at p. 6.) But Plaintiff

alleges that the sexual pregnancy harassment was continuous. (Complaint ¶¶ 25, 29.) To plead a FEHA sexual harassment claim, the

plaintiff does not have to specify the precise frequency with which the employer subjected them to harassment; an allegation of continuous statements creates a factual inference of multiple occasions.

(Decloedt, supra, 121 Cal.App.5th at p. 748.)

In

sum, the Court finds that Plaintiff has sufficiently alleged a qualifying sexual harassment dispute within the meaning of the EFAA, and accordingly, this action should not be compelled to arbitration.

CONCLUSION

The

Court’s December 9, 2025 order is VACATED.

Defendants’

motion to compel arbitration is DENIED.

Defendants

are ordered to file their answers within 10 days.

A

Case Management Conference is scheduled for _____ at 8:30 a.m. in
Department 506.

Clerk

to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at
SMCDEPT506@lacourt.ca.gov indicating intention to submit. If all parties in the case submit on the
tentative ruling, no appearances before the Court are required unless a
companion hearing (for example, a Case Management Conference) is also on
calendar.

Dated this 28th day of September 2026

Hon. Thomas D.

Long

Judge of the Superior

Court